

PRESS RELEASES

California Activists Sue Marin County Sheriff for Illegally Sharing Drivers' License Plate Data With ICE, CBP and Other Out-of-State Agencies

Immigrants' Privacy, Security Threatened by Sheriff's Practice, Which Violates California Law

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SAN FRANCISCO – Community activists in Northern California today sued Marin County Sheriff Robert Doyle for illegally sharing millions of local drivers' license plates and location data, captured by a network of cameras his office uses, with hundreds of federal and out-of-state agencies—a practice that violates two California laws, endangers the safety and privacy of local immigrant communities, and facilitates location tracking by police.

The ACLU Foundations of Northern California, Southern California, and San Diego & Imperial Counties, the Electronic Frontier Foundation (EFF), and attorney Michael T. Risher represent community activists Lisa Bennett, Cesar S. Lagleva, and Tara Evans, long-time Marin community members, [in a lawsuit filed in Marin County Superior Court](#). The suit seeks to end the sheriff's illegal practice of giving hundreds of agencies outside California access to a database of license plate scans used to identify and track people, revealing where they live and work, when they visit friends or drop their kids at school, and when they attend religious services or protests.

“The information unveiled through this lawsuit shows that the freedoms that people think they possess in Marin County are a mirage: people cannot move about freely without being surveilled,” said Bennett. “Our county sheriff, who has sworn to uphold the law, is in fact violating it by sharing peoples' private information with outside agencies. This has especially alarming implications for immigrants and people of color: two communities that are traditionally the

targets of excessive policing, surveillance, and separation from loved ones and community through incarceration or deportation.”

License plate scans occur through Automated License Plate Readers (ALPRs): high-speed cameras mounted in a fixed location or atop police cars moving through the community that automatically capture all license plates that come into view, recording the exact location, date, and time that the vehicle passes by. The information can paint a detailed picture of our private lives, our daily schedules, and our social networks.

Targeting Immigrant Communities

Documents show that the sheriff’s office shares and transfers ALPR information with Immigration and Customs Enforcement (ICE), Customs and Border Protection (CBP), over a dozen other federal law enforcement agencies, and over 400 out-of-state law enforcement agencies.

“In the hands of police, the use of ALPR technology is a threat to privacy and civil liberties, especially for immigrants. Federal immigration agencies routinely access and use ALPR information to locate, detain, and deport immigrants. The sheriff’s own records show that Sheriff Doyle is sharing ALPR information with two of the most rogue agencies in the federal government: ICE and CBP,” said Vasudha Talla, Immigrants’ Rights Program Director at the ACLU Foundation of Northern California (ACLU NorCal). “Police should not be purchasing surveillance technology, let alone facilitating the deportation and incarceration of our immigrant communities.”

Using its ALPR system, the Marin County Sheriff's Office scans tens of thousands of license plates each month. That sensitive personal information, which includes photographs of the vehicle and sometimes its driver and passengers, is stored in a database. The sheriff permits hundreds of out-of-state agencies and several federal entities, including units of the Department of Homeland Security, to run queries of a license plate against information the sheriff has collected. The agencies are also able to compare their own bulk lists of vehicle license plates of interest, known as "hot lists," against the ALPR information collected by the sheriff's office.

California's S.B. 34, enacted in 2015, bars this practice. The law requires agencies that use ALPR technology to implement policies to protect privacy and civil liberties, and specifically prohibits police from sharing ALPR data with entities outside of California. The sheriff also violates the California Values Act (S.B. 54), also known as California's "sanctuary" law. Enacted in 2018, the law limits the use of local resources to assist federal immigration enforcement.

In 2019, ACLU NorCal [released documents](#) revealing that ICE agents use their access to the license plate data gathered by police agencies across the nation to find and arrest people.

"This lawsuit sends a message to other California law enforcement agencies that are unlawfully sharing ALPR data and helping ICE—and we know there are others," said EFF Staff Attorney Saira Hussain. "In recent years, California has enacted laws specifically to protect immigrant communities and prohibit the sharing ALPR data with entities outside the state. Local police and sheriffs are not above the law and should be held accountable when they violate measures

designed to protect the privacy of all Californians generally, and vulnerable communities specifically.”

The lawsuit is the first of its kind to challenge the sharing of private information collected by ALPR mass surveillance.

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